

K R Prasad vs Smt. B S Lakshmi on 1 March, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

- 1 -

MFA No. 6349 of 2015
C/W MFA No. 6350 of 2015

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 1ST DAY OF MARCH, 2023
PRESENT
THE HON'BLE MR JUSTICE ALOK ARADHE
AND
THE HON'BLE MR JUSTICE VIJAYKUMAR A PATIL
MISCELLANEOUS FIRST APPEAL NO.6349 OF 2015 (FC)
C/W
MISCELLANEOUS FIRST APPEAL NO.6350 OF 2015 (FC)

BETWEEN:
K R PRASAD
SON OF SRI RANGANATHA RAO,
AGED ABOUT 50 YEARS,
RESIDING AT NO.25, 3RD CROSS,
NANJA REDDY COLONY,
AIR PORT ROAD,
BANGALORE-560 017.

...APPELLANT

Digitally
signed by

(COMMON)

GAYATHRI N (BY SMT. SUNANDA SARKAR, ADV. FOR
Location: SRI DEEPAK. J AND SMT. K.R.NETHRAVATHI, ADV.)
High Court
of Karnataka

AND:
SMT. B S LAKSHMI
D/O SRI B SUBBARAMAIAH,
AGED ABOUT 43 YEARS,
RESIDING AT NO.289, 21ST MAIN,
BTM 2ND STAGE, I PHASE,
B.T.M. LAYOUT,
BANGALORE-560 068.

...RESPONDENT
(COMMON)

- 2 -

MFA No. 6349 of 2015
C/W MFA No. 6350 of 2015

(BY SMT. SOWMYA.M.S., ADV. FOR
SRI. C V KUMAR.,ADVOCATE)

THE MFA NO.6349/2015 IS FILED U/S 19(1) OF THE FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE DATED 23.07.2015 PASSED IN M.C NO.2089/2005 ON THE FILE OF THE VI ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BENGALURU, ALLOWING THE PETITION FILED U/S 9 OF HINDU MARRIAGE ACT FOR RESTITUTION OF CONJUGAL RIGHTS.

THE MFA NO.6350/2015 IS FILED U/S 19(1) OF THE FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE DATED 23.07.2015 PASSED IN M.C NO.279/2004 ON THE FILE OF THE VI ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BENGALURU, REJECTING THE PETITION FILED U/S 13(i), 1(a) AND 13(ib) OF HINDU MARRIAGE ACT FOR DISSOLUTION OF MARRIAGE.

THESE APPEALS, COMING ON FOR HEARING, THIS DAY, ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

MFA No.6349/2015 and MFA No.6350/2015 arise out of common judgment and decree dated 23.07.2015 passed in M.C.No.2089/2005 and M.C.No.279/2004.

2. MFA No.6349/2015 has been filed by the appellant/husband being aggrieved by the judgment and decree dated 23.07.2015 passed in M.C.No.2089/2005 by which the petition filed by the respondent/wife under Section 9 of the Hindu Marriage Act, 1955, has been allowed.

3. MFA No.6350/2015 has been filed by the appellant/husband being aggrieved by the judgment and decree dated 23.07.2015 passed in M.C.No.279/2004 by which the petition filed under Section 13 of the Hindu Marriage Act, 1955, has been dismissed.

4. Learned counsel for the parties while inviting attention of the Court to the report submitted by the Bangalore Mediation Centre, submit that the dispute between them has been amicably resolved. The terms and conditions of the agreement arrived at between the parties reads as under :-

"MEMORANDUM OF AGREEMENT UNDER SECTION 89 OF THE CODE OF CIVIL PROCEDURE READ WITH RULES 24 AND 25 OF THE KARNATAKA CIVIL PROCEDURE (MEDIATION) RULES, 2005.

The parties above named submit as follows:

I. The above appeal is filed by the appellant u/s 19(1) of the Family Court Act, against the judgment and decree dated 23.07.2015 passed in M.C.No.2089/2005 on the file of the 6th Addl. Prl. Judge, Family Court, at Bangalore.

II. The above appeal is referred for mediation for resolving the dispute between the parties. During the course of mediation both the parties have resolved their difference and have agreed to the following terms:-

III. The respondent had filed a petition in M.C.No.2089/2005 on the file of the VI Addl. Prl. Judge, Family Court, Bengaluru u/s 9 of the Hindu Marriage Act, 1955 against the appellant seeking a decree for restitution of conjugal rights. The said petition was allowed on 23.07.2015 against which the present appeal MFA No.6349/2015 is preferred.

IV. In view of this settlement arrived by both the parties in MFA No.6350/2015. The appellant shall not press the above appeal.

V. Parties will appear before this Hon'ble High Court of Karnataka, Bangalore for passing appropriate orders."

5. We have perused the memorandum of agreement which has been duly signed by learned counsels as well as their parties.

6. In view of the compromise arrived at between the parties, the appellant does not intend to press both the appeals. In the result the same are dismissed.

Sd/-

JUDGE Sd/-

JUDGE NG CT:DMN